

25LBCV00209 25LBCV00209

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 25LBCV00209 Hearing Date: August 25, 2026 Dept: S27

1.

Motions to Compel and Deem RFAs Admitted

Defendant moves to compel further responses to SROGs, FROGs, and RPDs because Plaintiffs served objections only responses to all discovery. Defendant also moves to deem RFAs admitted.

Plaintiffs oppose. They filed their opposition papers late and seek relief under CCP §473(b) for the late filing. They contend Defendant failed to properly meet and confer prior to filing the motions, they will have served further verified responses in full compliance with the Code prior to the hearing, and no sanctions should be imposed.

2.

CCP §473(b)

As Department S27 has previously admonished Plaintiffs' firm, CCP §473(b) does not apply to discovery responses or discovery motions. See *Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1105, holding that the Discovery Act has its own remedy for failure to timely respond, and that remedy is exclusive.

Additionally, CCP §473(b) contemplates the making of a motion for relief, and nothing in the statute permits the parties to seek relief via opposition papers.

As the department recently admonished Plaintiffs in 25LBCV01259, on 6/30/26, Plaintiffs' counsel must cease citing §473(b) in connection with discovery motions.

The Court has briefly read and considered the opposition papers despite their untimely filing, but notes that this is a pattern and practice with Strategic Legal Partners and the ongoing untimely filing of documents is unacceptable.

3.

Deeming RFAs Admitted

Defendant argues the RFAs should be deemed admitted because there were no verifications with the moving papers.

As the Court admonished Defendant on 7/14/26 in connection with 25LBCV01973, this is not a correct statement of the law. Per *Blue Ridge Ins. Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 344-345, the portion of discovery responses that consists of objections need not be verified; it need only be signed by the attorney of record for the responding party, which the responses herein were. Only the portion of the responses that includes substantive information needs to be verified.

Food 4 Less Supermarkets, Inc. v.

Superior Court (1995) 40 Cal.App.4th 651 is instructive. The plaintiff therein filed a motion to compel further responses, arguing that certain objections asserted by the defendants in their responses were improper, and also that the responses were unverified. The trial court treated the motion as one to compel initial responses and granted it in light of the lack of verifications. The trial court held that lack of verifications rendered the responses “tantamount to no response at all,” such that all objections were waived.

The court of appeals reversed. It held:

What then is the appropriate procedure if a party tenders a hybrid response containing objections and fact-specific responses? Given our analysis, there is no need to verify that portion of the response containing the objections. Thus, if the response is served within the statutory time period, that portion of the response must be considered timely notwithstanding the lack of verification. The omission of the verification in the portion of the response containing fact-specific responses merely renders that portion of the response untimely and therefore only creates a right to move for orders and sanctions under subdivision (k) of section 2031 as to those

responses but does not result in a waiver of the objections made. The only situation in which lack of verification could both render the response untimely and result in a waiver of objections under subdivision (k) is when the initial unverified response contains no objections. And in a different factual vein, subdivision (k) could result in a waiver of objections if the party fails to file any response within the statutory time period. Neither of the latter two situations is present here.

Applying these principles to the present proceeding, we conclude that the trial court proceeded contrary to law. Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely. The trial court therefore erred in finding defendants had waived their objections and in imposing monetary sanctions upon defendants. The trial court should have instead ruled upon the merits of the motion plaintiff had actually filed seeking to compel further responses. We will issue a peremptory writ of mandate requiring the trial court to do so.

The court of appeals essentially held that where, as here, the responding party provides responses that consist of both objections and substantive responses, the proper motion to be filed is a motion to compel further responses, not a motion to compel initial responses. By analogy, the proper motion in this case would have been a motion to compel further responses to RFAs, not a motion to deem the RFAs admitted. Such motion is governed by CCP §2033.290, not §2033.280. The motion to deem RFAs admitted is denied.

4.

Separate Statement

Because the remaining three motions, relating to SROGs, FROGs, and RPDs, are motions to compel further responses, separate statements were required. CRC 3.1345. Defendant did not file separate statements. The Court notes that Plaintiffs' original responses consisted solely of objections, such that a separate statement was arguably not necessary to resolve the issues presented by way of the motion. The Court will rule on the motions despite the fact that no statements were filed.

5.

Motions Moot

Plaintiffs served supplemental responses to the subject discovery on 7/22/26. The motions are therefore substantively moot. To the extent the sufficiency of the supplemental responses is contested by Defendant, the Court asks the parties to meet and confer in good faith to resolve any outstanding issues.

6.

Sanctions

Defendant's notices of motion do not mention sanctions. The points and authorities seek sanctions, but CCP §2023.040 requires sanctions to be sought in the notice of motion. This department has repeatedly admonished Defense Counsel that sanctions will not be awarded if they are not properly sought in the notice of motion. All requests for sanctions are denied in light of this defect.

7.

Motion to Compel Deposition

Plaintiffs establish their depositions have gone forward and the motions to compel are moot. The motions are therefore denied.

6. Conclusion

All motions are denied substantively as ungrounded in law and/or moot. All requests for sanctions are denied due to insufficient notice.

Defendant is ordered to give notice.